

complies with the applicable statutory standards creates a rebuttable presumption that service was proper. (*Floveyor Int'l, Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795; *American Exp. Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.)

Here, Plaintiff's proof of service, signed by a registered process server is sufficient to create a presumption that service of process. (*Floveyor Int'l, Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795; Cal. Evid. Code § 647).

The burden shifts to Defendant to provide sufficient contradictory evidence to rebut the presumption. The court finds that Defendant has failed to do so.

Defendant contends there is a surveillance video but failed to serve the surveillance video to Plaintiff. Further, no person purports to authenticate the surveillance video. Finally, the person who purports to authenticate a still of the surveillance video is Tamar Arminak, Defendant's attorney. Arminak however fails to provide sufficient foundation to establish that Arminak has sufficient personal knowledge to authenticate the still.

Defendant provides a declaration of Armando Arzata, the security guard. Defendant himself fails to offer a declaration to refute that he was personally served. In Plaintiff's opposition, Plaintiff offers a declaration of Liana Borisov, the registered process server. Borisov declares that upon serving, she "asked the man if he was MAURICIO QUINTANILLA HERNANDEZ and he said, "Yes, that's me." I then gave the Case Initiating Documents and then complimented the Property," which is consistent with the proof of service filed. (Borisov Decl., ¶ 6.)

The California Supreme Court has adopted a "liberal construction" of California statutes governing service of process. (*Pasadena Medi-Center Associates v. Superior Court* (1973) 9 Cal.3d 773, 778; *Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 410.) So long as the defendant receives actual notice of the lawsuit, substantial compliance with the California statutes governing service of summons generally will be held sufficient. (*Pasadena Medi-Center*, 9 Cal.3d at 778; *Gibble v. Car-Lene Research*,

		<i>Inc.</i> (1998) 67 Cal.App.4th 295, 313; <i>Dill v. Barquist Construction Co.</i> (1994) 24 Cal.App.4th 1426, 1436-1437.) The court finds that Defendant has not met his burden of rebutting the presumption of proper service. As such, the motion is DENIED. Defendant SHALL respond to the Complaint within 20 days. Plaintiff to give notice.
11	Doe vs. Anaheim Elementary School District	<u>Demurrer</u> <u>Motion to Strike</u> 1. Demurrer The court SUSTAINS, with 5 days leave to amend, the unopposed demurrer by Defendant ANAHEIM ELEMENTARY SCHOOL, regarding the third cause of action of the Complaint filed by Plaintiff JANE JI DOE, a minor, by and through her Guardian ad Litem, SHARLENE SANCHEZ. The demurrer appears to be meritorious. Plaintiff's third cause of action asserts Defendant failed to "properly warn, train, and/or educate their administrators, credentialed staff, and classified staff." (Compl., ¶ 88.) As noted by Defendant, "a direct claim against a governmental entity asserting negligent hiring and supervision, when not grounded in the breach of a statutorily imposed duty owed by the entity to the injured party, may not be maintained." (<i>de Villers v. County of San Diego</i> (2007) 156 Cal.App.4th 238, 255-256.) Similarly, while the third cause of action alleges a failure to properly warn, train, and educate students as to bullying (Compl., ¶¶ 85-87), schools do not have an actionable duty of care "in the discharge of their academic functions." (<i>Peter W. v. San Francisco Unified School District</i> (1976) 60 Cal.App.3d 814, 825.)